

Court No. - 3

Case :- WRIT - C No. - 20059 of 2011

Petitioner :- M/S K.L. Concast Pvt. Ltd.

Respondent :- Pashchimanchal Vidyut Vitran Nigam Ltd. & Others

Petitioner Counsel :- Mayank Agrawal

Respondent Counsel :- Pankaj Kumar Shukla, A.N. Singh

Hon'ble Amitava Lala, J.

Hon'ble Ashok Srivastava, J.

Mr. Umesh Narain Sharma, learned Senior Counsel, assisted by Mr. Mayank Agrawal, learned Counsel, has appeared for the petitioner.

An important question has been raised before this Court that the Uttar Pradesh Electricity Supply Code, 2005 is contrary to the Electricity Act, 2003. Therefore, the vires of the Code is challenged. As against the same, when we have asked the question that who is answerable to the query on notice, it has been said that there is no role of the State in this regard. Therefore, whether respective provisions of the Code are contrary to the Electricity Act, 2003 or not is to be answered by the Central Government itself. Hence, a notice is required to be sent to the learned Attorney General of India for his appearance or engagement of learned Counsel to represent the case.

Let the writ petition appear on 26.4.2011 in the supplementary list of fresh cases.

Mr. Pankaj Kumar Shukla, learned Counsel appearing for respondent nos. 1 & 2, has given an undertaking that if the petitioner deposits the claimed amount within 15 days from the date of communication of this order and succeeds in the case it will be refunded to the petitioner with a simple interest of 6% per annum.

Order Date :- 6.4.2011

MAA/-

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As prayed for by learned Counsel appearing for the respondents time is granted to file counter affidavit within three weeks from this date. Rejoinder, if any, will be filed within one week thereafter.

Let the matter appear four weeks hence.

As per the prayer of Mr. S.K.Misra, learned Counsel appearing for Union of India, the notice is to be served upon the Secretary, Ministry of Power. Such notice will be served in the meantime.

Interim order earlier granted by this Court will continue till the next date of listing.

Order Date :- 10.5.2011

MAA/-



HIGH COURT OF JUDICATURE AT ALLAHABAD

WRIT - C No. - 20059 of 2011

M/S K.L. Concast Pvt. Ltd.

.....Petitioner(s)

Versus

Pashchimanchal Vidyut Vitran Nigam Ltd. And
Others

.....Respondent(s)

Counsel for Petitioner(s)	: Mayank Agrawal
Counsel for Respondent(s)	: A.N. Singh, Ajay Singh, Pankaj Kumar Shukla, S.C.

Court No. - 21

**HON'BLE MAHESH CHANDRA TRIPATHI, J.
HON'BLE KUNAL RAVI SINGH, J.**

1. The instant case is pending since 2011. As the vires of U.P.Electricity Supply Code 2005 is under challenge, while entertaining the writ petition on 6.4.2011 inadvertently notice was issued to the learned Attorney General of India for his appearance or engagement of learned counsel to represent the case. It is also apprised that in response to the order dated 6.4.2011, the petitioner had already deposited the requisite amount.

2. Let the notice be issued to the learned Advocate General of the State of U.P. for his appearance or engagement of learned counsel to represent the case. Meanwhile, an affidavit is to be filed with regard to the deposits made in pursuance of the order dated 6.4.2011. The State-respondents may also file objection in the meantime.

3. List this matter again in the week commencing 17.08.2026.

(Kunal Ravi Singh,J.) (Mahesh Chandra Tripathi,J.)

July 15, 2026

A.K.Srivastava